MICHIANA TRUST PLANNING

Indiana Revocable Trust Readiness Checklist

Everything an Indiana family needs for a complete, properly funded revocable living trust plan — from first document to final transfer.

Attorney-reviewed content

michianatrustplanning.com

INDIANA TRUST READINESS CHECKLIST

> **!** The most common failure: Most families stop at step 1 — signing the documents. Without completing steps 2–5, the trust exists but provides almost no protection. A signed, unfunded trust still sends your home and accounts through Indiana probate court.

1 The Seven Documents

Indiana-specific — All 7 required for a complete plan

- [ ] Revocable Living Trust Agreement
  The core document. Names trustees, beneficiaries, and distribution terms.
- [ ] Pour-Over Will
  Safety net + guardian nomination for minor children.
- [ ] Certificate of Trust
  Short summary for banks and title companies. Required to retitle accounts.
- [ ] Durable Financial Power of Attorney
  Covers financial decisions during incapacity. Indiana Code 30-5.
- [ ] Health Care Representative Designation
  Names who makes medical decisions if you cannot.
- [ ] Living Will / Advance Directive
  Documents end-of-life care preferences.
- [ ] Assignment of Personal Property
  Transfers household goods, collectibles, and personal items into the trust.

2 Real Estate

Indiana-specific — Must be recorded with county recorder

- [ ] Indiana Quitclaim Deed prepared naming trust as owner
- [ ] Deed recorded with recorder's office in the property's county
- [ ] Exempt from Indiana transfer tax per IC 6-2.1-3-3 (transfer to revocable trust)
- [ ] Title insurance company and mortgage lender notified if applicable
- [ ] Written confirmation of recording obtained and filed
- [ ] Out-of-state property reviewed separately
  May require ancillary deed in that state's format.

3 Financial Accounts

Banks, brokerages, and investment accounts

- [ ] All checking and savings accounts retitled in trust name, OR Transfer on Death (TOD) beneficiary updated to the trust
- [ ] All brokerage and investment accounts retitled or TOD updated
- [ ] Written confirmation obtained from each institution
- [ ] Certificate of Trust provided to each institution as required
- [ ] Safe deposit box access reviewed and updated if needed

4 Retirement Accounts & Life Insurance

Do NOT title retirement accounts in the trust — review beneficiary designations directly

- [ ] IRA beneficiary designations reviewed — primary and contingent named

  Do not name the trust as IRA beneficiary without consulting an advisor.

- [ ] 401(k) / 403(b) beneficiary designations reviewed

  Requires employer plan forms — not just a will or trust update.

- [ ] Life insurance beneficiary designations reviewed

  Determine if trust should be named. Confirm with insurance company in writing.

- [ ] Annuity beneficiary designations reviewed

5 Personal Property & Business Interests

- [ ] Assignment of Personal Property signed and dated

  Transfers furniture, jewelry, vehicles, collectibles into the trust.

- [ ] High-value items listed specifically in assignment if desired

  Art, jewelry, collections, firearms, antiques.

- [ ] Business interests reviewed

  Transfer may require co-owner consent — review operating agreement first.

- [ ] Vehicle titles reviewed

  Indiana allows retitling vehicles into trust — check with BMV.

6 Execution & Notarization

Indiana-specific signing requirements

- [ ] Trust Agreement signed before notary
- [ ] Pour-Over Will signed with 2 disinterested witnesses + notary
- [ ] Durable Financial POA signed before notary

  Indiana permits remote online notarization (RON) from home.
- [ ] Health Care Rep + Living Will signed with 2 witnesses

  Witnesses cannot be heirs or healthcare providers.
- [ ] Certificate of Trust signed before notary
- [ ] Assignment of Personal Property signed and notarized

7 Ongoing Maintenance

- [ ] Funding proof file built

  Copies of: recorded deed, account confirmations, beneficiary forms.
- [ ] Trust copy provided to successor trustee with location noted
- [ ] Annual review scheduled

  Marriage, divorce, birth, death, or new assets each trigger a review.
- [ ] Newly acquired real estate deeded into trust at purchase
- [ ] New financial accounts titled in trust name at opening

What "Done" Looks Like

A complete, funded trust plan has a paper trail: a recorded deed confirmation, account retitling letters, signed beneficiary forms, and a completed Assignment of Personal Property.

If you can't produce these documents, the plan is not yet complete.

Your Funded Plan Produces:

- Recorded deed confirmation from county recorder
- Account retitling confirmation letters from each institution
- Updated beneficiary designation forms (retirement + insurance)
- Signed Assignment of Personal Property
- Complete copies stored with successor trustee

Ready to Complete Your Plan?

Visit michianatrustplanning.com for attorney-reviewed Indiana trust document bundles — from a DIY workbook to a complete 7-document package.

michianatrustplanning.com

© 2026 Michiana Trust Planning. Attorney-reviewed content. Not legal advice.
This checklist is educational and does not create an advisor-client relationship.